TENDAI MAKUWATSINE
(In his capacity as co-executor of the Estate
Patrick Medicine Mucheriwa)
and
BRYAN WESTON MUCHERIWA
and
WELLINGTON MUCHERIWA
and
FAITH DOROTHY MUCHERIWA
and
CLEPPERTON MUCHERIWA
and
CHRISTINA EUNICE STØVRING
and
FRANCIS MADZINGA
and
JENNY MARIMO
versus
RONALD MUCHERIWA
(In his capacity as the co-executor
of the Estate Patrick Medicine Mucheriwa)
and
RUTH MUCHERIWA
and
PATIENCE MUCHERIWA
and
PAMELA MUCHERIWA
and
ARCHIBOLD MUCHERIWA
and
MASTER OF HIGH COURTTENDAI MAKUWATSINE
(In his capacity as co-executor of the Estate
Patrick Medicine Mucheriwa)

HIGH COURT OF ZIMBABWE
MANYANGADZE J
HARARE, 27 November 2025 & 9July 2026

Opposed application

T F Chimbadzwa, for the applicants
T Danana, for the first respondent
K. Takundwa, for the second respondent

MANYANGADZE J:

INTRODUCTION

This is an application for a provisional order filed in terms of s 10 (2) of the Deceased Estates Amendment Act No. 3 of 2024 ("the Amendment Act") in which the applicants seek the following relief:

> "1. The application for an order granting the first Applicant and compelling the first Respondent in their capacity as Co-Executors of the Estate Late Patrick Medicine Mucheriwa (DR1635/21) authority to sell (i) an undivided one-half share in stand 2420 Marlborough Township of stand 2550 Marlborough Township situate in the district of Salisbury measuring 504 square metres (ii) an undivided one half in 2626 Mvurwi Township by private treaty.
> 2. The sixth Respondent be and is hereby ordered to issue Authority to sell the above properties in terms of Section 120 of the Administration of Estates Act.
> 3. The proceeds of the sale shall be distributed as follows; one-half share belongs to the second Respondent and the other one half share to be shared equally to all the beneficiaries of Estate late Patrick Medicine Mucheriwa.
> 4. All the rentals to be collected by the first Applicant and to be shared in equal share between the Estate late Patrick Medicine Mucheriwa and Ruth Mucheriwa.
> 5. No order as to cost."

BACKGROUND

The application emanates from registration of the estate of the late Patrick Medicine Mutseriwa with the office of the Master of the High Court, DR 1635/21("the estate"). The estate consists of properties described as:

(1) 2420 Marlborough Township of Stand 2550 Marlborough Township
(2) 2626 Mvurwi Township

The deceased owned a half share (50%), with his second wife Ruth Mucheriwa (the second respondent) owning the remaining half share, in each of the properties described above.

The first applicant and the first respondent are co-executors of the estate, each one catering for the interests of the applicants and the respondents, respectively, who are all beneficiaries of the estate.

The applicants want the properties of the estate sold and the proceeds from the deceased's share of the estate shared among the beneficiaries. The applicants allege that the respondents are not sharing rental income generated from the estate properties. This proposal has been met with resistance from the respondents, prompting the instant application.

POINTS *IN LIMINE*

The first and second respondents have raised the following points *in limine*:

(i) There is no proper founding affidavit

(ii) The application does not conform to rule 60 (1)

(iii) Section 10 (2) is not a proper basis for the application, rendering it fatally defective

(iv) The applicants have not complied with the mandatory steps under s 120 of the Administration of Estates Act

(v) The applicants have not exhausted domestic remedies

(vi) The applicants are engaged in improper forum shopping

Validity of founding affidavit

The respondents make the observation that the supporting affidavits to the founding affidavit - all seven of them - predate the founding affidavit. The founding affidavit was commissioned on 25 September 2025. The dates when the supporting affidavits were commissioned range from 17 June 2025 to 27 June 2025. The respondents aver that these affidavits are supporting a non-existent founding affidavit.

The applicants concede the predating. It is too obvious to dispute anyway. The applicants give an unclear explanation for the anomaly, which is that the beneficiaries no longer reside in Zimbabwe. The affidavits had to be sent abroad for them to be notarised. The explanation is baffling as it does not clear away the predating. The fact remains that in June 2025, the second to the eighth applicants averred that they have read and supported the first applicant's founding affidavit. They could not possibly have done so when the first applicant's affidavit was signed in September 2025.

Be that as it may, it is my view that the validity of the founding affidavit is not vitiated by the supporting affidavits. The founding affidavit itself has not been impugned. It has thus been

validly attested and filed. The application is predicated on the founding affidavit. The supporting affidavits are meant to do just that - support the founding affidavit. The application stands or falls on the founding affidavit. If anything, the anomaly pointed out by the respondents vitiates the supporting affidavits, not the founding affidavit.

It is not in dispute that the applicant beneficiaries consented to the sale of the estate property, and the authority of the Master was being sought for the sale to take place. That is the substance of the founding affidavit. The validity or otherwise of the supporting affidavits is neither here nor there. Even if they are all expunged from the record that does not vitiate the founding affidavit. It may dilute its evidentiary value, by reason of some evidentiary material in the supporting affidavits having been lost. That does not equate to its validity and admissibility as a pleading on which the applicants' case is founded. Its weight or credibility is a different matter for the court's assessment.

In the circumstances, I find no merit in this preliminary point. It is accordingly dismissed.

Conformity to rule 60 (1)

The respondents aver that the application does not show that it is in any form. In terms of rule 60(1), the application must either be in Form 25 or a modified Form 23.

The applicants contend that they have made their application in terms of s 10 (2) of the Amendment Act and have complied with the provisions thereof.

It seems to me the applicants have proceeded under a statutory provision specific to the disposal of property belonging to a deceased estate by private treaty. That provision lays down the requirements of such an application. In my view, since the applicants have described, and thus categorised, their application as "*a chamber application*", they are not excused from compliance with the provisions relating to such applications. The form of such applications is provided for in rule 60 (1) of the High Court Rules, 2021. It reads as follows:

> " A chamber application shall be made by means of an entry in the chamber book and shall be accompanied by Form No. 25 duly completed and, except as is provided in subrule (2), shall be supported by one or more affidavits setting out the facts upon which the applicant relies: Provided that, where a chamber application is to be served on an interested party, it shall be in Form No. 23 with appropriate modifications."

As indicated, the respondents contend that the applicants have just thrown in an application. It is devoid of any form. It is not in conformity with either Form 25 or 23.

I am unable to uphold the respondents' contention. A look at the notice of application shows that it outlines the grounds on which the application is based and has, attached to it, the necessary affidavits. The respondents have been able to respondent to the application in their notice of opposition and heads of argument. They have not been prejudiced at all. In my view, the application substantially complies with the rules and cannot be said to be devoid of any form whatsoever as averred by the respondents. In this regard, I share the sentiments expressed by TAKUVA J in *Burnet Motors Dealership (Pvt) Ltd* v *Harare Institute of Technology* HH 23/26. The learned judge stated, at p 3:

> "I do not agree with the Respondent that the use of Form number 25 instead of Form number 23 renders the application a nullity. This argument is often referred to as the battle of form over content. In my view, the import behind the two rules is that where a Chamber Application is to be served on an interested party, the application shall be in Form number 23 with appropriate modification. The rationale is to ensure that the other party is informed of his rights which appear in Form 23 and not in Form 25.
> I take the view that this application cannot be termed defective for this reason. The Respondent, apart from the fact that it was left to speculate on its rights, did not suffer any prejudice. While it is trite that parties must abide by the rules, *in casu*, although the grounds for the application do not show in Form 25, these appear in the founding affidavit. Also, it is important to note that the Respondent was not misled in that it filed its notice of opposition and opposing affidavit upon receipt of the application. One should also consider the interests of the administration of justice especially the principle that there should be finality to litigation. In the present matter, if the Respondent gets his wish, the matter will be struck off the roll but will find its way back in a matter of days."

This point *in limine* is also dismissed.

Application wrongly based on s 10 (2)

The respondents contend that s 10 (2) of the Amendment Act is simply amending s 120 of the Administration of Estates Act [*Chapter 6:01*] ("the Act") and as such does not create a cause of action. It provides no substantive basis for an application. The respondents aver that the applicants should have cited a relevant substantive provision. They should not let the court sift through the Act to identify the provision on which the application is based, as emphasized in *Bushu* v *GMB & Ors* HH 326/17.

The applicants, on the other hand, assert that their application has been properly made under s 10 (2) of the Amendment Act, which sets out the requirements for such an application. A reading of s 10 of the Amendment Act shows that it is the provision that repeals s120 of the Act and substitutes it with a new s 120 which reads, in s 120 (2), as follows:

> "The executor shall, on notice of motion to every person having an interest in such estate, apply to the High Court for a provisional order to grant to the executor the authority to sell any specified property belonging to such estate by private treaty, supported by an affidavit of the Master setting forth the basis on which the application is being made (by reference to subsection (1)(b)(i) or (ii), together with adequate particulars of the property that will be the subject matter of the authority)."

Whilst it was improper for the applicants to cite s 10 (2), instead of s 120 (2) as amended by s 10 of the Amendment Act, that, in my view, is not so fundamental as to vitiate the entire application. The applicants wrongly cited the amending Act instead of the principal Act. The proper citation should be *s 120 (2) of the Deceased Estates Act [Chapter 6:01], as amended by s 10 of the Deceased Estates Amendment Act No. 3 of 2024*.

The respondents seek to non-suit the applicants by raising this procedural technicality, as they have done in the other preliminary points. Courts should be very slow in non-suiting litigants on such procedural technicalities. I am unable to uphold this preliminary point and it is accordingly dismissed.

Mandatory requirements under s 120

The respondents aver that the applicants failed to comply with the mandatory requirements set out in s 120 of the Act. These requirements are that there must first be an inquiry by the Master. Ater such inquiry, the Master must attest to an affidavit supporting the application. The applicants must attach that affidavit to their application. This point is encapsulated in paragraph 14 of the respondents' heads of argument, wherein is submitted:

> "From a proper reading of section 120(1)(b) it is clear that the process must begin with the Master, who, after due inquiry, determines whether it would be to the advantage of the estate's beneficiaries or creditors for certain property to be sold by private treaty. Only once the Master has conducted this inquiry and deposed to an affidavit in terms of subsection (2) may an executor approach the High Court for a provisional order authorising the sale. The statutory scheme

> contemplates a two-pronged process: first, the Master's inquiry and affidavit; second, the executor's application to the Court, supported by that affidavit." (underlining added)

The respondents contend that by proceeding without this inquiry and affidavit by the Master, the court will be usurping the Master's supervisory role in the administration of deceased estates. It is a jurisdictional pre-requisite.

In countering the respondents' averment, the applicants insist that there is nothing irregular about their application. They requested for the Master's consent. They could not obtain such consent in the absence of affidavits from the other beneficiaries. This left them with no option but to approach the High Court with the instant application.

The applicants further aver that the Master can only issue the said report or affidavit when requested by the court.

It seems to me this point is fundamental to this application. It cannot be described as a mere technicality like the preceding preliminary points. Though raised as a point in limine, it seems to me it also traverses, to a substantial extent, the merits of the matter. It is concerned with the essential question of what must be brought before the court in order for it to make an appropriate determination on the disputed disposal of the estate property.

This crucial point can only be resolved by an interpretation of the relevant statutory provisions, which are spelt out in s 120 (1) (2) of the Act. As already indicated, the original s 120 of the Act was substituted by a new s 120, introduced through s 10 of the Amendment Act.

The law on the interpretation of statutes is clear. The cardinal rule is that words in the statute must be given their ordinary grammatical meaning, unless this would lead to an absurdity. This point has been underscored in numerous cases. See *Chegutu Municiplaity* v *Manyora* 1996 (1) ZLR 262 at p264D-E (S), *Madoda* v *Tanganda Tea Company Ltd* 1999 (1) ZLR 374, *ZIMRA & Anor* v *Marowa Diamonds (Pvt) Ltd* 2009 (2) ZLR 213 (S), *Endeavour Foundation & Anor* v *Commissioner of Taxes* 1995 (1) ZLR (S) at p 356 F-G.

Section 120 reads as follows:

> "**120 Sale of property otherwise than by auction**
>
> (1) If, on written application by the executor to the Master-
>
> (a) the executor produces to the Master an affidavit jointly sworn by all the persons having an interest in an estate supporting the application of the executor to sell specified property of the

estate (being property in respect of which the will of the deceased contains no provisions to the contrary) otherwise than by public auction, and the Master is of the opinion that no good grounds exist for not granting the application, the Master shall give the executor the necessary written authority for the executor to proceed accordingly; or

(b) the Master, after due inquiry, is of opinion that-

(i) it would be to the advantage of persons interested in the estate to sell any property belonging to such estate otherwise than by public auction; or

(ii) all claims of creditors against the deceased estate as have been lodged with the executor will be better met if any property belonging to such estate were sold otherwise than by public auction;

the Master may, depose to the affidavit referred to in subsection (2) in support of an application for the executor to be granted the necessary authority so to act.

(2) The executor shall, on notice of motion to every person having an interest in such estate, apply to the High Court for a provisional order to grant to the executor the authority to sell any specified property belonging to such estate by private treaty, supported by an affidavit of the Master setting forth the basis on which the application is being made (by reference to subsection (1)(b)(i) or (ii), together with adequate particulars of the property that will be the subject matter of the authority).

(3) At the hearing of the application, if it appears to the judge that no good reason exists against the grant to the executor of the authority concerned, the judge shall grant the provisional order, whereupon the executor shall proceed in terms of subsection (4):

Provided that the judge shall refuse to grant the provisional order if there is produced to him or her an affidavit by any person having an interest in the estate showing that (in the judge's opinion) there is good reason not to grant to the executor the authority concerned.

(4) When granted, the executor shall cause the provisional order to be enrolled in the motion roll for confirmation at the earliest motion court after the date on which the judge grants the provisional order.

(5) On the return day for the confirmation of the provisional order, the motion court shall confirm the provisional order, unless there is produced to the court an affidavit by any person having an interest in the estate showing that (in the court's opinion) there is good reason not to grant to the executor the authority concerned, and if no such affidavit is produced, or the affidavit does not, in the court's opinion, disclose good reasons for the refusal to grant the order, the court shall confirm the provisional order (which confirmation has effect as if the Master had issued the authority to the executor to proceed to sell the property by private treaty)."

An examination of the cited section reveals three important stages/scenarios.

Sub-section 1 (a): Where all beneficiaries agree

If all beneficiaries support the executor's application to sell the property by private treaty, the Master shall grant authority to sell. Use of the word "*shall*" implies that where there is a joint

affidavit indicating that all the beneficiaries are in agreement, there is a peremptory requirement on the Master to give his/her consent to the sale of the property.

There is however, the somewhat confusing phrase

"*and the Master is of the opinion that …*"

The addition of this phrase implies that the Master's opinion still counts. The Master considers the joint affidavit sworn to by all the beneficiaries, supporting the private sale. If the Master is satisfied there are no good grounds for withholding his/her consent, then he/she is enjoined to grant such consent.

In my view, it seems there is very little, if any room, to direct otherwise if all the beneficiaries clearly, in writing, support the executor's application for the Master's consent to the sale. It would be only in exceptional circumstances that the Master will form an opinion that is contrary to an agreed position endorsed by all beneficiaries.

Sub-sections 1(b) and 2: Where some beneficiaries disagree

The use of the disjunctive word "or" between 1(a) and 1(b) denotes alternative scenarios. The scenario under 1(a) is where the beneficiaries agree and submit a jointly sworn statement. The situation under 1(b), it follows, is the alternative one where the beneficiaries are not in agreement. They have not been able to come up with a jointly sworn statement.

This is the scenario obtaining *in casu.* The Master carries out due inquiry where there is no jointly sworn statement in support of the executor's application for consent to a private sale. After due inquiry, the Master forms an opinion, after taking into account the factors outlined in sub-paragraphs (i) and (ii), that it is in the best interest of beneficiaries and creditors alike if the estate property is sold by private treaty. The Master deposes to an affidavit, wherein is expressed his/her opinion. The due inquiry, evidenced by the Master's affidavit, provides a basis for the application made by the executor in terms of s 120 (2).

It is only after this process is carried out that the executor approaches the High Court with an application for a provisional order. Such an application is supported by the Master report, which is in affidavit form.

Sections 3 – 5: Powers of the Court

These sections spell out the powers exercised by the court after hearing the executor's application, which application would have been brought before the court in terms of s 120 (2). As already indicated, the applicant must have complied with s 120 (2) for the application to be properly brought before the court.

It seems to me this provision i.e. s120 of the Act, could have been drafted with greater precision, clearly outlining the stages involved and the extent of the master's discretion. The use of the word "*may*" in subsection (1) (b) (ii) suggests that the Master has a discretion as to whether to depose to the affidavit referred to. This creates some confusion or uncertainty as to how the executor proceeds if the Master declines to issue the affidavit supporting the sale, given the peremptory requirement for such an affidavit in subsection (2). The whole procedure is premised on the assumption that the Master, after due inquiry, supports the proposed sale by private treaty.

As the provisions are currently framed, what is clear is that the Master's inquiry precedes the executor's application to the court. That inquiry, evidenced by the Master's affidavit, assists the court in determining the application, through the procedure outlined in subsections (3) - (5).

The new section 120 of the Act, it appears, was not introduced to prolong the bureaucracy surrounding the disposal of deceased estate property. In my view, it creates a crucial forum for primary or domestic remedies best administered by the Master's office. This, it seems to me, is the rationale underlying the requirements in s 120. They are meant to safeguard the interests of all beneficiaries to a deceased estate. First and foremost, property is disposed of by private treaty where they give their joint support to the executor's application. Where there is no agreement among the beneficiaries, the Master is enjoined to carry out an inquiry and render an opinion, which opinion will assist the court in determining the application brought by the executor. During such an inquiry, it is obvious that representations are made by all interested persons.

In the case of *Master of the high Court N.O.* v *Takaendesa & Others* SC 101/22, the court underscored the importance of the Master's inquiry. Though the court was dealing with the repealed s 120 of the Act, its remarks on the necessity and scope of the due inquiry by the Master are instructive. GUVAVA JA stated, at pp 15-16:

> "[27] It should be noted that in arriving at a decision of whether or not to sell a property by private treaty the Master does not operate in a vacuum. He must take into account various competing interests the most important of which is that he must be satisfied that he is acting in

> the best interests of the beneficiaries. Section 3 of the Administrative Justice Act requires that he acts in a lawful, reasonable and fair manner. In this case the Master did not question whether or not it was in the interest of the beneficiaries to sell three farms in order to pay US$14 047 that was owed by the Estate. Indeed, had the Master applied his mind to the facts he would have realised that selling three farms in order to pay such a paltry amount was unreasonable and unfair on the beneficiaries. It should be noted that the inquiry required by s120 of the Administration of Estates Act and the authorities cited above, is not a judicial inquiry, but a simple inquiry merely to ascertain the facts and for the Master to satisfy himself that he is indeed acting in the best interest of the beneficiaries. Had the Master acted in this manner he would have sought the views of the beneficiaries. A simple letter asking for their views on the matter would have been more than sufficient.
>
> [28] It is trite that the right to be heard is a basic tenet of our law. Where the Master intends to make a decision affecting the rights of beneficiaries it is incumbent upon him that he affords them an opportunity to present their side of the matter. In my view, the importance of this right is of particular import given that a sale by private treaty does not have the protection and transparency associated with a public auction. It is the objections or concerns raised by the beneficiaries which lead the Master into making an appropriate decision. In essence therefore, the Master, in carrying out the inquiry must afford the beneficiaries a chance to be heard.
>
> [29] Section 69 of the Constitution provides for the right to be heard for all citizens before a court of law, judicial body, quasi-judicial body or administrative authority. The Master being a quasi-judicial officer with an administrative role must allow beneficiaries the right to be heard and the right to make objections or raise concerns over the administration of the estate. This is also in line with the statutory provision of s 3 (2) of the Administrative Justice Act."

The courts generally defer to domestic remedies, unless these are shown to be ineffective. Among the leading cases on this principle is that *of Girjac Services (Pvt) Ltd* v *Mudzingwa* 1999 (1) ZLR 243 (S). GUBBAY CJ stated, at 249 C-F: [27]

> "In *Tutani* v *Minister of Labour and Others* 1987 (2) ZLR 88(H) at 95 D, MUTAMBANENGWE J observed that where domestic remedies are capable of providing effective redress in respect of the complaint and secondly, where the unlawfulness alleged has not been undermined by the domestic remedies themselves, a litigant should exhaust his domestic remedies before approaching the courts unless there are good reasons for not doing so. The same approach was applied by SMITH J in *Musandu* v *Chairperson Cresta lodge Disciplinary Committee* HH 115/94 (not reported and was referred to with approval by MALABA J in *Moyo* v *Forestry Commission* 1996(1) ZLR 173(H) at 191 D – 192 B. I respectfully endorse it."

In *Nokuthula Moyo* v *Norman Gwindingwi N.O and Another* HB 168/11, MATHONSI J (as he then was) noted that domestic remedies in that case were those remedies and procedures that are set out in the code of conduct as being available to an aggrieved party to pursue. In this regard, the judge stated;

> "In a line of cases, this court has determined that it will be very slow to exercise its general review powers jurisdiction in a situation where a litigant has not exhausted domestic remedies

> available to him. A litigant is expected to exhaust available domestic remedies before approaching the courts unless good reasons are shown for making an early approach."

The learned judge then went on to refer to a number of High Court decisions in which the same point was highlighted. These include *Musandu* v *Cresta Lodge Disciplinary and Grievance Committee* HH 115/94, *Tuso* v *City of Harare*, 2004 (1) ZLR (1) (H), *Chanora* v *Reserve Bank of Zimbabwe* 2006 (1) ZLR 525(H), *Tutan* v *Minister of Labour and Others* 1987 (2) ZLR 88(H).

Turning to the case *in casu*, it is common cause that the application is not accompanied by the Master's affidavit. The applicants claim that they have exhausted the domestic remedies available to no avail. However, apart from this bald averment, they have not placed anything before the court substantiating the steps they have taken in compliance with the provisions of s120 (2). The Master's affidavit constitutes critical evidence of exhaustion of the said domestic remedies. The absence of that affidavit, in my view, deals a fatal blow to the application.

In the circumstances, the court finds that this preliminary point has considerable merit and it is accordingly upheld.

The respondents' other two points *in limine* are no different from the preceding one. They aver that the applicants have not exhausted domestic remedies and also that the applicants are forum shopping. At the centre of these averments is the failure to obtain the Master's affidavit as stipulated in s 120 (2). The analysis made above applies with equal force to these two points. They are merely elaborating the same point, *viz* non- compliance with the requirements in s 120 (2) of the Act.

Having regard to the point *in limine* that has been upheld, in my view, the proper course of action is to have this matter struck off the roll.

In the result, it is ordered that:

1. The application be and is hereby struck off the roll.

2. The applicants bear the respondents' costs jointly and severally, the one paying the others to be absolved.

MANYANGADZE J:……..

Makuwatsine Chirenje Attorneys, applicants' legal practitioners
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